

Court No. - 35

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Petitioner Counsel :- Syed Ali Murtuza

Respondent Counsel :- V.S. Mishra

Hon'ble Vineet Saran,J.

Hon'ble Anil Kumar,J.

List after two weeks to enable the learned counsel for the petitioner to obtain instructions.

Order Date :- 13.7.2010

dk/-

Court No. - 35

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Petitioner Counsel :- Syed Ali Murtuza

Respondent Counsel :- V.S. Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Kumar Dixit,J.

List correctly showing the name of Smt. Mridul Tripathi as counsel for the respondents after two weeks.

Order Date :- 10.8.2010

Rakesh

Court No. - 35

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Petitioner Counsel :- Syed Ali Murtuza

Respondent Counsel :- V.S. Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Case called out in the revised list.

No one appears for the petitioner to press the writ petition.

The writ petition is dismissed for non-prosecution.

Interim order stands discharged.

Order Date :- 8.9.2010

Ram Murti

Court No. - 32

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Petitioner Counsel :- Syed Ali Murtuza

Respondent Counsel :- V.S. Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Prakash Krishna,J.

Order on restoration application

This is an application for recall of the order dated 8.9.2010 by which order the writ petition was dismissed for non prosecution.

Sufficient cause has been shown for condonation of delay in filing the restoration application. It has been stated in the affidavit of paragraph-6 that the case could not mark in the cause list, hence no one could appear when the case was called.

Both the delay as well as the restoration application are allowed. The order dated 8.9.2010 is recalled. The writ petition is restored to its original number.

List before the appropriate Bench.

(Prakash Krishna,J)

(Ashok Bhushan,J)

Order Date :- 29.5.2012

IB

Court No. - 21

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Petitioner Counsel :- Syed Ali Murtuza

Respondent Counsel :- V.S. Mishra

Hon'ble R.K. Agrawal,J.

Hon'ble Mushaffey Ahmad,J.

List again showing the name of Sri Nripendra Mishra, sri A.V. Yadav and Sri Mahboob Ahmad as counsel for the respondent.

Order Date :- 5.7.2012

n.u.

Court No. - 21

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Petitioner Counsel :- Syed Ali Murtuza, Z.M. Naiyar

Respondent Counsel :- V.S. Mishra, H.P. Dubey, Smt. Mridul Tripathi

Hon'ble Yatindra Singh, J.

Hon'ble Mahendra Dayal, J.

List again showing the name of Sri Amrit Lal Yadav in place of all counsel for respondent. The counsel for the petitioner will serve two copies of the paper book on Sri Amrit Lal Yadav and inform him about this order.

Order Date :- 29.8.2012

BBL

Court No. - 3

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Counsel for Petitioner :- Syed Ali Murtuza, B.C. Rai, Z.M. Naiyar

Counsel for Respondent :- Amrit Lal Yadav

Hon'ble Krishna Murari, J.

Hon'ble Amar Singh Chauhan, J.

List again showing the name of Sri Shravan Kumar Tripathi also as one of the learned counsels appearing for the respondent.

Order Date :- 11.9.2015

AK

Court No. - 34

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Counsel for Petitioner :- Syed Ali Murtuza, B.C.
Rai, Z.M. Naiyar

Counsel for Respondent :- Amrit Lal Yadav

Hon'ble Sudhir Agarwal, J.

Hon'ble Shamsher Bahadur Singh, J.

Sri B.C. Rai, learned counsel appearing for petitioner, has concluded his arguments.

Sri Shravan Kumar Tripathi, Advocate, who has appeared on behalf of U.P. Power Corporation, was not able to assist Court and wants some further time to prepare the matter.

As prayed, put up tomorrow.

Order Date :- 24.5.2016

S.S.

Court No. - 34

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Counsel for Petitioner :- Syed Ali Murtuza, B.C.

Rai, Z.M. Naiyar

Counsel for Respondent :- Amrit Lal Yadav

Hon'ble Sudhir Agarwal, J.

Hon'ble Shashi Kant, J.

As prayed, put up tomorrow i.e. 14.12.2016.

Order Date :- 13.12.2016

A. Verma

Court No. - 34

Case :- WRIT - C No. - 12076 of 2004

Petitioner :- M/S Shri Gautam Motors Pvt Ltd

Respondent :- U.P. Power Corporation Ltd & Others

Counsel for Petitioner :- Syed Ali Murtuza, B.C.

Rai, Z.M. Naiyar

Counsel for Respondent :- Amrit Lal Yadav

Hon'ble Sudhir Agarwal, J.

Hon'ble Dr. Kaushal Jayendra Thaker, J.

1. Heard Shri Deepak Kumar Pandey holding brief of Shri B.C. Rai, learned counsel for petitioner, Shri Shrawan Kumar Tripathi, learned counsel for respondents and perused the record.

2. By means of this writ petition under Article 226 of the Constitution of India following reliefs have been sought :

"A). to issue a writ of Certiorari quashing the report dated 19.02.2004 (Annexure - 8) and the consequent bill recovery of Rs.5,93,227/- (Annexure - 9) in respect of installation No. HP - 24 situate at Bharwa Sumerpur, Dist. Hamirpur (U.P.).

B). to issue a writ of prohibition restraining the respondents from recovering Rs.5,93,227/- on the basis of the inspection report dated 19.2.2004 (Annexure-8) and the consequent bill received on 18.3.2004 (Annexure - 9).

C). to issue a writ of mandamus directing the respondents to grant adjustment of the excess amount of Rs.1.00 lakh realized from the petitioner pursuant to Annexure-3.

D). to grant any other writ order or direction, which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

E). to award the cost of writ petition."

3. The only question raised in this writ petition is whether electricity bill can be raised on the basis of check meter or not.

4. Learned counsel for petitioner stated that there is no such provision and also relied on following authorities in support of his submission :-

(i). 2009 (1) ADJ 430 (DB) : **Smt. Amrawati Devi Vs. Purvanchal Vidyut Vitran Nigam Limited and another;**

(ii). (1997) 6 SCC 740 : **Belwal Spinning Mills Ltd. and others Vs. U.P. State Electricity Board and another; and**

(iii). (2003) 4 SCC 172 : **Tata Hydro-Electric Power Supply Co. Ltd. and others Vs. Union of India.**

5. Learned counsel for U.P. Power Corporation Limited very fairly admitted that there is no provision either under U.P. Electricity Supply Code or the Electricity Act, 2003 that electricity bill can be raised on the basis of check meter.

6. In view thereof, writ petition is allowed and impugned demand dated 19.02.2004 (Annexure - 8) and the consequent bill for recovery of Rs.5,93,227/- (Annexure - 9) are hereby set aside.

Order Date :- 14.12.2016

LBY